



**DEPARTMENT OF THE NAVY
CHIEF OF THE CONTRACTING OFFICE
SOUTHWEST REGIONAL MAINTENANCE CENTER
3755 BRINSER STREET, SUITE 1
SAN DIEGO CA 92136-5299**

J&A Number: N55236250008
Code: 410B
Sol Number: N5523625R0007
Date: 23 DEC 2024

**JUSTIFICATION AND APPROVAL
FOR USE OF OTHER THAN FULL AND OPEN COMPETITION**

1. CONTRACTING ACTIVITY

Southwest Regional Maintenance Center (N55236), 3755 Brinser Street, Suite #1, San Diego, CA 92136.
Contracting Department Code 410B.

2. DESCRIPTION OF THE ACTION BEING APPROVED:

This justification seeks approval to solicit a sole source requirement for the USS SOMERSET (LPD-25) Main Propulsion Diesel Engine (MPDE) direct replacement parts and components which includes the following:

1B MPDE & 2B MPDE Overhaul			
DESCRIPTION	PART NUMBER	QTY	UNIT OF ISSUE
WIRE THERMOCOUPLE EXT #16 AWG TYPE KX KAPTON INSUL	12996704N	1000	IN
KIT, TURBOCHARGER (LPD)	P12620466	2	EA
BOLT, HEX HD. M20-2.5 X 50, ASTM A453 GR-660 CL. A (HI-TEMP)	P12621266	24	EA
CAPSCW, SOC.HD. 20- 2.5X130	0002020.130.8	4	EA
NUT, HEX, M20-2.5, ASTM A453 GR-660 CL. A (HITEMP)	P12621275	52	EA
BOLT, HEX HD. M20-2.5 X 65, ASTM A453 GR-660 CL. A (HI-TEMP)	P12621278	16	EA
BUSHING	P407119	1	EA
COTTER PINS, PL STL 3/32X1-1/4	81309935N	1	EA
LEVER WITH TOOTHED SECTION	P12619133	1	EA
GASKET,ROUND-NORMAL 14.5 X 1.5	93005123N	32	EA
U-BOLT	P12614198	5	EA
NUTS, PLATED HEAVY HEX 1/2-13	81344096N	18	EA
BUSHING	P407119	1	EA
LEVER WITH TOOTHED SECTION	P12619133	1	EA
COTTER PINS, PL STL 3/32X1-1/4	81309935N	1	EA

CAPSRC, HEX DRILLED HD, ST52, M16-2.0 X 100	0000616.100.8	1	EA
CAPSCREW, HEX HD, M12- 1.75 X 30, CLASS 10.9	2AAT12287	4	EA
KIT, TURBOCHARGER (LPD)	P12620466	2	EA
BOLT, HEX HD. M20-2.5 X 50, ASTM A453 GR-660 CL. A (HI-TEMP)	P12621266	24	EA
CAPSCW, SOC.HD. 20- 2.5X130	0002020.130.8	4	EA
NUT, HEX, M20-2.5, ASTM A453 GR-660 CL. A (HITEMP)	P12621275	52	EA
BOLT, HEX HD. M20-2.5 X 65, ASTM A453 GR-660 CL. A (HI-TEMP)	P12621278	16	EA
ACTUATOR SEALING KIT	14001028	1	EA
ACTUATOR, PNEUMATIC	14001032	1	EA
ACTUATOR PNEUMATIC AX90/3	14001026	1	EA
ACTUATOR SEALING KIT	14001028	1	EA
ACTUATOR, PNEUMATIC	14001032	1	EA
ACTUATOR PNEUMATIC AX90/3	14001026	1	EA
U-BOLT	P12614198	5	EA
NUTS, PLATED HEAVY HEX 1/2-13	81344096N	18	EA
KIT, TURBOCHARGER (LPD)	P12620466	2	EA
BOLT, HEX HD. M20-2.5 X 50, ASTM A453 GR-660 CL. A (HI-TEMP)	P12621266	24	EA
CAPSCW, SOC.HD. 20- 2.5X130	0002020.130.8	4	EA
NUT, HEX, M20-2.5, ASTM A453 GR-660 CL. A (HITEMP)	P12621275	52	EA
U-BOLT	P12614198	5	EA
NUTS, PLATED HEAVY HEX 1/2-13	81344096N	18	EA
BUSHING	P407119	1	EA
COTTER PINS, PL STL 3/32X1-1/4	81309935N	1	EA
LEVER WITH TOOTHED SECTION	P12619133	1	EA
KIT, TURBOCHARGER (LPD)	P12620466	2	EA
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BOLT, HEX HD. M20-2.5 X 50, ASTM A453 GR-660 CL. A (HI-TEMP)	P12621266	24	EA
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BOLT, HEX HD. M20-2.5 X 65, ASTM A453 GR-660 CL. A (HI-TEMP)	P12621278	16	EA
ACTUATOR SEALING KIT	14001028	1	EA
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ACTUATOR PNEUMATIC AX90/3	14001026	1	EA
U-BOLT	P12614198	5	EA
NUTS, PLATED HEAVY HEX 1/2-13	81344096N	18	EA
BUSHING	P407119	1	EA
LEVER WITH TOOTHED SECTION	P12619133	1	EA
COTTER PINS, PL STL 3/32X1-1/4	81309935N	1	EA
CAPSRC, HEX DRILLED HD, ST52, M16-2.0 X 100	0000616.100.8	1	EA
CAPSCREW, HEX HD, M12- 1.75 X 30, CLASS 10.9	2AAT12287	4	EA

The parts are manufactured by Fairbanks Morse Defense, 701 White Ave. Beloit, WI 53511 U.S.A.

3. DESCRIPTION OF SUPPLIES/SERVICES:

The Southwest Regional Maintenance Center (SWRMC) requires direct replacement parts and components for the USS SOMERSET's MPDE which are highly specialized for a major system. The USS SOMERSET will be undergoing a repair and maintenance drydocking selected restricted availability (DSRA) with a required delivery date of 18 August 2025 and requires these parts to overhaul the main propulsion diesel engine.

The original equipment manufacturer (OEM) is Fairbanks Morse Defense. Fairbanks Morse Defense holds the proprietary rights, patents, and copyrights to all materials, drawings, and equipment associated with these materials and is the only source for these parts and components, with no authorized distributors or resellers.

The only company's materials that can meet the critical requirements set forth above and is compatible with the existing equipment is Fairbanks Morse Defense. The materials being procured are to support the main propulsion diesel engine of the ship; therefore, it is crucial that the OEM provide the materials to ensure it works at full capacity. The class LPD parts are strictly designed, manufactured and installed per NAVSEA DWG and NAVSEA Tech Manuals (TM) for the package of work items and specifications for the repair of the USS SOMERSET:

- S9233-DL-MMM-010: Main Propulsion Diesel Engine Model Number 16PC2.5V STC USS SAN ANTONIO (LPD 17 CLASS)
- S9233-DL-HBK-010 Rev 8, Main Propulsion Diesel Engine, Colt Pielstick Model Number PC 2.5V STC, LPD 17 Class Ships; Standardized Maintenance Procedures Handbook

These specific parts and components must be compatible in all aspects (form, fit, and function) with the existing systems presently installed; therefore, the parts and components must be procured directly from

Fairbanks Morse Defense.

The parts and components will be installed as overhaul components of the MPDE during the DSRA scheduled for [REDACTED]

The total estimated value of this acquisition is \$428,370.33 using FY-25, OPN funds.

4. STATUTORY AUTHORITY PERMITTING OTHER THAN FULL AND OPEN COMPETITION

The statutory authority permitting other than full and open competition for this effort is 10 U.S.C. 2304(c)(1), from only one responsible source or only from a limited number of responsible sources and no other supplies or services will satisfy agency requirements. Only one responsible source and no other supplies or services will satisfy agency requirements IAW FAR 6.302-1(c)(1).

5. RATIONALE JUSTIFYING USE OF CITED STATUTORY AUTHORITY

The only company which can meet one or more of the critical requirements set forth above, such as existence of patents, copyrights, compatibility with existing equipment: Fairbanks Morse Defense.

Fairbanks Morse Defense is the OEM for the specific Main Propulsion Diesel Engine parts. As the sole provider to the building yard, they have the engineering in place to manufacture MPDE parts. To attempt to procure these products from any other source would result in substantial duplication of costs to the Government that could not be recovered through competition because the Government would be required to purchase an entirely new main propulsion diesel engine, at an estimated cost of at least \$10,000,000, not including installation costs. The replacement or conversion of the entire engine would be cost prohibitive and exceed the cost to conduct repairs through the use of this authority. Cost savings would not result from full and open competition to avoid the proprietary nature of the current configuration.

6. DESCRIPTION OF EFFORTS MADE TO SOLICIT OFFERS FROM AS MANY OFFERORS AS PRACTICAL:

In accordance with PGI 206.302-1(d), SWRMC posted a sources sought notice on SAM.gov on 11 December 2024, with a response date of 16 December 2024. SWRMC received no responses. Additionally, due to the proprietary nature of these materials there is no reasonable expectation of obtaining proposals from vendors other than the OEM, Fairbanks Morse Defense.

7. DETERMINATION OF FAIR AND REASONABLE COST:

The contracting officer will determine that the anticipated cost of this acquisition will be fair and reasonable based on price analysis to be conducted pursuant to FAR Part 15. Contractor will provide commercial price list for the supplies required and prior sales history for the same items so that a more detailed review of pricing can be performed to ascertain the reasonableness of the current offered pricing.

8. ACTION TAKEN TO REMOVE BARRIERS TO COMPETITION:

This requirement is a sole source request due to the proprietary nature of the direct replacement parts.

There are currently no known additional sources to foster competition for parts. The only company which can meet one or more of the critical requirements set forth above, such as existence of patents, copyrights, compatibility with existing equipment, is the OEM, Fairbanks Morse Defense

CERTIFICATIONS AND APPROVAL

TECHNICAL/REQUIREMENTS CERTIFICATION (FAR 6.303-2(b))

I certify that the facts and representations under my cognizance, which are included in this justification and its supporting acquisition planning data, including Acquisition Plan No. N/A, except as noted herein, are complete and accurate to the best of my knowledge and belief.

TECHNICAL/REQUIREMENTS COGNIZANCE:

WERINGASARAH. Digitally signed by
ROSE. Date: 2024.12.30 09:20:12 -08'00'

Signature	Sarah Weringa, PM, Code 310.3	(619) 341.1849	
	Name (Print) and Title (Code)	Phone No.	Date

CONTRACTING OFFICER CERTIFICATION (FAR 6.303-2(b)(12))

I certify that this justification is accurate and complete to the best of my knowledge and belief.

RIOVEROS.RODERICK.Q. Digitally signed by
RIOVEROS.RODERICK.Q. Date: 2024.12.30 09:20:12 -08'00'

Signature	Roderick Rioveros, PCO, Code 410B	(619) 571-3479	
	Name (Print) and Title (Code)	Phone No.	Date

LEGAL SUFFICIENCY REVIEW (NMCARS 5206.303(90))

I have determined this justification is legally sufficient.

LAUTEMANN.DREW.ALAN. Digitally signed by
LAUTEMANN.DREW.ALLAN. Date: 2024.12.30 09:32:44 -08'00'

Signature	Drew Lautemann, Asst. Counsel, Code 100C	(619) 556-0525	
	Name (Print) and Title (Code)	Phone No.	Date

APPROVAL BLOCK (FAR 6.304 for Approving Official)

Upon the basis of the above justification, I hereby approve, as Contracting Officer, the solicitation of the proposed procurement(s) described herein using other than full and open competition, pursuant to the authority of 10 U.S.C. 2304(c)(1).

CONTRACTING OFFICER

RIOVEROS.RODERICK.Q. Digitally signed by
RIOVEROS.RODERICK.Q. Date: 2024.12.30 09:51:01 -08'00'

Signature	Roderick Rioveros, PCO, Code 410B	(619) 571-3479	
	Name (Print) and Title (Code)	Phone No.	Date